

TENTATIVE RULINGS

LAW & MOTION

DEPT C24

Judge Gassia Apkarian

The court will hear oral argument on all matters at the time noticed for the hearing, **unless the Court has stated that the matter is off calendar**. **Do not call the department to verify if you should appear or not.** Please read below for the information. If you would prefer to submit to the Court's tentative without oral argument, advise all counsel first to find out if all parties are submitting and then moving party is to telephone the clerk at (657)622-5224 with the status of all parties. If the moving party has submitted the matter and there are no appearances by any party at the hearing, the tentative ruling will be the final ruling. Rulings are normally posted on the Internet by **10:30 a.m.** on the day of the hearing. Generally, motions will not be continued or taken off calendar after the tentative has been posted. **The moving party shall give notice of the ruling.**

April 15, 2025
2:00 PM

If you want a transcript, you must provide your own court reporter

#	Case Name	Tentative
1	Hillsboro Brown Capital, LLC vs. Taft 19-01087702	1-4) Motion to Compel Answers to Special Interrogatories 5-9) Motion to Compel Production Off calendar
2	3H Investments, LLC vs. Duncan 19-01106394	1) Motion - Other 2) Motion for Attorney Fees Plaintiffs 3H Investments, LLC, Melissa Priest, and Richard Priest's (collectively, "Plaintiffs") Motion for Attorney Fees on Appeal is GRANTED. Plaintiffs seek contractual attorney's fees incurred in connection with three appeals taken by Defendant Kathleen Duncan ("Duncan") in this case. Plaintiffs also request an additional \$3,060 in fees and costs incurred in filing this motion. Duncan does not contest Plaintiffs' entitlement to fees in the amount of \$43,145.65 for the first two appeals (the "Fees

		Appeal” (Appeal No. G062498) and the “Indemnity Appeal” (Appeal No. G061947)). As to fees for the third appeal (the “Contribution Appeal” (Appeal No. G062641)), Duncan contends that the award would be premature until the Court enters an order on her renewed Contribution Motion, which is set for hearing on the same date as this motion. Duncan concedes that, if the Court denies her Contribution Motion, then Plaintiffs would be the prevailing party and entitled to an award of fees pursuant to the parties’ operating agreement. (Oppn at 2:18-22.) Duncan’s Motion for Contribution is denied. Duncan has not disputed the reasonableness of the amount sought in fees. Nor has Duncan offered any argument in opposition to Plaintiffs’ request for \$3,060 in fees and costs incurred in filing this motion. Accordingly, the Plaintiffs’ motion is granted in full. Plaintiffs are awarded their requested fees as follows: 1. For the “Fees Appeal” (Appeal No. G062498): \$20,843.95 2. For the “Indemnity Appeal” (Appeal No. G061947): \$21,477.25 3. For the “Contribution Appeal” (Appeal No. G062641): \$19,150 4. Fees and Costs incurred in filing this motion: \$3,060 Plaintiffs to give notice.
3	Montag vs. Mirador at Rancho Niguel Association 20-01165493	Motion – Other Plaintiff, Elaine Montag (“Plaintiff”), moves for an Order to Show Cause re: Contempt against Defendant, Mirador At Rancho Niguel Association (“HOA”) for the HOA’s failure to comply with the Court’s Order dated August 13, 2024 and Judgment dated October 3, 2024, ordering the HOA to comply with the terms of the written settlement agreement between Plaintiff and the HOA and complete repairs required under the Settlement Agreement by October 18, 2024. Plaintiff also moves for an award of her attorneys’ fees and costs incurred in the contempt proceedings and enforcing the Settlement Agreement in the sum of \$39,392.35 should the Court determine that the HOA is guilty of the contempt charged. Plaintiff’s Motion is DENIED. “There are two types of civil contempt, direct and indirect contempt.” (<i>Moore v. Superior Court of Orange County</i> (2020) 57 Cal.App.5th 441, 454 (“<i>Moore</i>”).) Direct contempt is when the